

Terms & Conditions

1. Introduction

Welcome to Hola Prime Limited ("we" or "us" or "The Company"). By accessing or using our website at www.holaprime.com or any related sites or mobile platforms under our control (collectively, the "Website" or "Websites"), you, the individual or entity ("Users", "Traders", "Customers", "customers", or "you"), agree to these Terms of Service. This agreement constitutes a legally binding contract governing your use of all materials, services, and products available through our website (www.holaprime.com).

2. Your Agreement

Please review these Terms of Service carefully before using our website. By using or accessing any part of the Website, you consent to be bound by these Terms. If you do not agree to these terms, you must not use our services or visit our website. The user understands it is their responsibility to read through all FAQs to understand how the Challenge and Hola Prime accounts work before paying for participating in a Challenge. A purchase made on this site means the user agrees to all terms and conditions.

3. Eligibility

Our services are only available to individuals who are 18 years of age or older. By registering on our website, you confirm that you are at least 18 years old. If you are under 18, you are not permitted to use our services. Additionally, you are responsible for ensuring that your use of our services complies with applicable laws, which may vary by country.

4. Scope of Terms

These Terms of Service apply to any new features or tools introduced to our website. The most current version of these Terms can always be found on this page. We may modify these Terms at any time, and your continued use of the website after changes have been posted constitutes your acceptance of those changes.

5. Definitions

For the purposes of this Agreement, the following terms shall have the meanings set forth below

5.1 Trading Account/Hola Prime Account/Challenge Account:

The account set up by the Company to facilitate Trading Activities, to impart education on behalf to the Customer.

5.2 Simulated Profit:

Represents any positive net income generated from Trading Activities after deducting all applicable fees, expenses, and realized losses.

5.3 Confidential Information:

Includes all proprietary data, trading strategies, methodologies, algorithms, market analyses, and client information belonging to the Company, regardless of the medium in which such information is stored or conveyed.

5.4 Hola Prime Account Allocation

The specific amount of funds provided by the Company to the Customer for the purpose of conducting Trading Activities.

5.5 Performance Metrics:

The criteria established by the Company to evaluate the Customer's performance, which may include profit margins, maximum daily loss limit, and adherence to risk management protocols.

5.6 Risk Management Policies:

The guidelines established by the Company to manage exposure to losses, including position sizing, stop-loss orders, maximum daily loss limit, and other related practices.

5.7 Business Day:

A day for a proprietary trading firm is any day when the firm is open for trading activities, typically excluding weekends and public holidays.

5.8 Contract:

Means this Agreement as well as any other agreement, contract, instrument or document of any kind or nature, as to which, in each case, the Customer is a party, has any obligations or holds any rights, and Hola Prime is a party, has any obligations or holds any rights, regardless of how documented and whether written or oral, together with all such purchases and sales, agreements, instruments and other documents, including, without limitation, payment and delivery obligations, obligations relating to the extension of credit or to pay damages (including costs of cover) and payment of legal and other expenses incurred in connection with the enforcement of Contracts.

5.9 Terms and Conditions:

Means the General Terms and Conditions of Hola Prime Limited. Any other term not covered above, shall be considered to have the same meaning/definition as in general understanding of the term, as per the industry standards.

6. General Terms

The Company always reserves the right to refuse service to anyone at any time without specifying any reason. The Customer acknowledges and permits that their content (except for credit card information), which is not of a sensitive nature, may be transferred unencrypted and involve (a) transmissions over various networks; and (b) changes to conform and adapt to technical requirements of connecting networks or devices. Credit card information is always encrypted during transfer over networks.

Further, without the Company's express written consent, the Customer agrees not to reproduce, duplicate, copy, sell, resell, or exploit any part of the Service, use of the Service, or access to the Service or any contact on the website through which the Service is provided.

7. Customer's Rights and Responsibilities

7.1 The Customer agrees that Hola Prime Limited may conduct background checks and reserves the right to decline any agreement for any reason, including incomplete or misleading information.

7.2 The Customer acknowledges the inherent risks of trading and has no ownership rights to any assets in the Trading Account. The Customer must be proficient in English for all communications.

7.3 The Customer agrees to provide current, complete, and accurate purchase and account information for all purchases made at the Provider's site. The Customer also agrees to promptly update their account

and other information, including email address, credit card numbers, and expiration dates, so that the Company can complete transactions and contact the Customer as needed.

7.4 The Customer agrees that:

- Communications will be professional.
- Hola Prime Limited may monitor these communications.
- There is no expectation of privacy in materials related to Hola Prime Limited.
- Compliance with applicable policies is required.

7.5 The Customer is an independent contractor, not an employee of Hola Prime Limited, and is solely responsible for tax obligations. Hola Prime Limited will not withhold taxes, and the Customer may engage with other trading entities as long as it complies with this Agreement.

7.6 The Customer agrees not to make false statements about Hola Prime Limited or its affiliates.

8. Data Security

8.1 The goals of KYC procedures are to:

8.1.1 Establish an efficient process for identifying and evaluating potential Customers.

8.1.2 Verify the Customer's identity using original or properly certified documents. After successfully completing the challenge phases, the KYC verification process will be initiated first.

8.1.3 The Customer will be asked to submit specific documents, which may include valid photo IDs such as:

8.2 The Company will perform KYC measures for all proposed transactions and business relationships, which include, but not limited to, the following:

8.2.1 Verify the Customer's identity using original or properly certified documents. After successfully completing the challenge phases, the KYC verification process will be initiated first.

8.2.2 The Customer will be asked to submit specific documents, which may include valid photo IDs such as:

- National ID
- Passport
- Driving Licence

8.2.3 Customers are required to complete a mandatory KYC verification interview before their first payout is processed. This step ensures identity verification and compliance with our policies. Please note that, as per our internal review process, the relevant team may request a follow-up KYC interview at any stage for additional security purposes.

8.3 KYC verification will not be completed if expired documents are submitted. Only current and valid documents will be accepted to proceed.

8.4 After collecting the necessary documents, the Customer will be directed to the "Agreement Signing" stage, where they must provide their full name and address and agree to the terms of the agreement. The verification process will then begin, which may take 48-72 hours.

8.5 Strict compliance with these measures is required. The Company reserves the right to refuse or terminate any business relationship with a customer if the CDD, EDD, or KYC criteria are not satisfactorily met.

8.6 Please note that failing to pass the KYC verification process will result in the rejection of the Customer's Account application.

Multiple individuals attempting KYC verification for the same account is strictly prohibited. In such an instance, the Company reserves the right to terminate the account immediately.

8.7 By using our accounts and services, you consent to the use of your name, location, photograph, interview, trading-related details, etc., by Hola Prime for marketing and promotional purposes, including on our website and/or social media, etc., without prior notice.

9. Customer Due Diligence:

This is a necessary process for initiating and maintaining relationships with Customers. It includes:

9.1 Collecting verifiable identification information from Customers

9.2 Understanding the intended nature and purpose of the Customer's trading activities.

9.3 Continuously monitoring trading activities.

10. Enhanced Due Diligence:

For business relationships or transactions deemed higher risk, as identified by the Company's standard risk assessment procedures, additional measures shall be implemented. These additional measures go beyond standard CDD requirements and include:

10.1 Obtaining extra identity verification documents

10.2 Conducting a detailed interview, potentially through a video call, to engage directly with the Customer and assess their legitimacy.

10.3 Gaining deeper insight into the Customer's trading methodology to ensure it aligns with our risk tolerance and ethical standards set by the Company.

10.4 Implementing enhanced and ongoing monitoring of the Customer's trading activities.

11. Risk Disclosure and Terms of Service -- Required Disclosures

11.1 Risk Disclosure:

Trading contains substantial risk and is not for every investor. An investor could potentially lose all or more than the initial investment. Risk capital is money that can be lost without jeopardizing ones' financial security or lifestyle. Only such capital should be used for trading which you can afford to lose and only those with sufficient risk capital should consider trading. Past performance is not necessarily indicative of future results.

11.2 Hypothetical Performance Disclosure:

Hypothetical performance results have many inherent limitations, some of which are described below. No representation is being made that any account will or is likely to achieve profits or losses similar to those shown; in fact, there are frequently sharp differences between hypothetical performance results and the actual results subsequently achieved by any particular trading program. One of the limitations of hypothetical performance results is that they are generally prepared with the benefit of hindsight. In addition, hypothetical trading does not involve financial risk, and no hypothetical trading record can completely account for the impact of financial risk of actual trading. For example, the ability to withstand losses or to adhere to a particular trading program in spite of trading losses are material points which can also adversely affect actual trading results. There are numerous other factors related to the markets in general or to the implementation of any specific trading program which cannot be fully accounted for in the preparation of hypothetical performance results and all of which can adversely affect trading results.

You may not share your user account login or password with anyone. You may not create more than one account. If you believe either of these has happened, please notify us via a help desk ticket immediately. We will change your password and will disable the duplicate account.

We do not share your contact information with third parties for marketing purposes.

By participating, you consent to receive phone calls, text and/or emails from our Support Staff.

11.3 Website, Tools, Webinar Disclaimers, and Disclosures.

If you have any technical issue, contact Hola Prime Support on Live chat or email.

Hola Prime Ltd makes no warranty, expressed or implied, regarding the accuracy, adequacy, completeness, reliability, or usefulness of the program or any information or function it provides. All warranties of any kind, express or implied, including but not limited to the implied warranties of merchantability, fitness for a particular purpose, freedom from contamination by computer viruses, and non-infringement of proprietary rights, are disclaimed by Hola Prime Ltd

The Company and all of its services are purely for educational purposes. The Company adamantly states that nothing in any of its software, tools, websites, webinars and other communication methods constitutes a solicitation, promotion, endorsement, offer, or recommendation to buy or sell any investment vehicle or advice. Neither the Company, its owners and operators, its subsidiaries, officers, employees, representatives, nor independent contractors are acting as licensed financial advisors. Hola Prime is acting solely as an education firm providing research tools and any trading done is for the sole and explicit purpose of illustrating the mechanics of a trade as an example for purely educational purposes. There is no assurance you will make profits or limit risk to less than the maximum risk on said product. The Company does not determine or advise whether any strategy, trading instrument or contract of any type is suitable for any individual. Education examples of strategies, trade examples, and hypothetical trades do not represent liquidity, exchange fees, commissions, interest, dividends, spreads, or other expenses and have the benefit of hindsight. These factors affect whether an investment is profitable. Any quotes made available may be delayed or may become unavailable due to technology difficulties. Before selling or buying any investment, consult with the ticket on the platform for the live pricing to verify pricing information. Neither subscriber nor any third party related to subscriber shall hold the Company liable for any change, cancellation, or temporary hold of company services.

Company and its affiliates provide the materials available at all associate websites and other company websites, products, "as is" and without representations or warranties of any kind, either expressed or implied to the fullest extent permissible pursuant to applicable law. Company and its affiliates and their respective officers, directors, employees, agents, suppliers, sponsors, and advertisers disclaim all warranties, express, implied, or statutory, including, but not limited to, implied warranties of title, non-infringement, merchantability, and fitness for a particular purpose, and all warranties relating to the adequacy, accuracy, or completeness of any information, product, or services. Company and its affiliates, their respective officers, directors, employees, agents, suppliers, sponsors, and advertisers do not warrant that your use of any company & products will be uninterrupted, error-free, or secure, that defects will be corrected, or that company products, including the servers on which websites are hosted are free of viruses or other harmful components. Applicable law may not allow the exclusion of implied or other warranties, so the above exclusions may not apply to you. For international users outside the United States, you understand you are responsible for compliance with the laws of your local

jurisdiction regarding all regulations related to any service or site operated by a company. It is prohibited to access any of a company website's content or services if it is in violation of any local laws of the user. You acknowledge that you are responsible for obtaining and maintaining all telephone, computer hardware, and other equipment needed to access and use information, products and services, including websites, and all charges related thereto. You assume total responsibility and risk for your use of and reliance on company products and services. Opinion, advice, or statement of the company, its affiliates or their respective officers, directors, employees, agents, suppliers, sponsors, and advertisers, whether made on a website or otherwise, shall not create any warranty. Your use of company products is entirely at your own risk.

11.4 Independent Contractors

For purposes of risk management Hola Prime accounts begin as simulated and are monitored for long term consistency. Customers are independent contractors not account holders or owners and are trading in a simulated funded environment only, and not using actual live funded accounts. For the purpose of simulated profit made in a Hola Prime account, payout is based on the performance achieved in the simulated account. The company shall process payouts due to customers as per the terms and conditions as independent contractors from simulated accounts whether simulated trades were copied or not or live trades were made or not. The Company shall make those payouts from available Hola Prime membership fees, revenues, trading, etc.

11.5 Important Disclosures about Trading

All investments and trading involve risk. Trading and investing subjects you to risk of losses, including losses greater than your original investment. Many strategies, investments, and securities are not suitable for everyone. The Company does not determine whether any strategy, investment, or security is suitable for any individual as is disclaimed with whatever exchange or broker dealer you open an account with. Traders should only trade with money they can afford to lose and only place trades where they understand the risk and the instrument. Past results are not indicative of future performance. Trade examples and hypothetical trades do not represent liquidity, commissions, interest, dividends, spreads, or other expenses and have the benefit of hindsight. All these factors affect whether an investment is profitable. For all products and services, even if the trade is live, all trades and trade examples are to be considered trade examples, based upon hypothetical trades for educational purposes only. Any quotes made available may be delayed. Before selling or buying any investment, consult with a broker to verify pricing information. This risk disclosure applies to this site and all sites, services, and products owned by the Company. This service is provided for purely educational purposes only. None of the information within this should be construed as financial advice. We do not intend to or are authorised by any Regulatory body to provide trade recommendations or any service that could be thought of as investment, legal, financial, or accounting advice.

Hypothetical or simulated performance results have certain limitations. Unlike an actual performance

record, simulated results do not represent actual trading. In addition, since the trades have not been executed, the results may have under- or over-compensated for the impact, if any, of certain market factors, such as the lack of liquidity, simulated trading programs in general are also subject to the fact that they are designed with the benefit of hindsight. No representation is being made that any account will likely or is likely to achieve profit or loss similar to those shown in hypothetical or actual performance records listed on any materials or communicated in any way by anyone associated with the Company. The Company and its affiliate websites, Coaches, company divisions, principals, agents, contractors, possible affiliates, employees, associates, and partners are not responsible for any profits nor any losses from any of the material produced by the Company and its subdivisions in any form of media or method of communication. Individuals may express their opinions, but that is meant to be seen as that individual's opinion and not the opinion of the Company. The Company uses research of a variety of methods to develop educational material and educational signals, but individuals should perform their own due diligence to determine if such material is suitable for their personal investment decisions.

The Company, its websites, Coaches affiliates, contractors, or employees are NOT acting as registered investment advisers, brokers, knowledgeable persons, broker dealers, or in any other capacity that would make one believe they should trade signals given by any such persons, companies, or affiliates. Investing in products involves substantial risk and investors could lose all or more of their originally invested capital, even more than is in their investment account. If any employee, contractor, possible affiliate, of the Company or this website decides to act in any way other than described in this disclaimer, they must do so with written documentation signed by the Company for each individual instance in which they may be doing so in a means separate from or linked to the Company. Otherwise, they are doing so without the knowledge or consent of the Company.

The Company products could include inaccuracies or errors. We do not make guarantees as to the completeness or correctness of any company product. Any data used or made available by the company is from sources believed by us to be reliable and accurate; however, the company does not investigate the sources or confirm the data and it does not make any representations that the data or resulting calculations are complete or otherwise accurate. From time to time, companies may reference prior articles and opinions. These references may be selective, may reference only a portion of an article or opinion, and are likely not to be current. As markets change continuously, previously published information and data may not be current and should not be relied upon.

Use of educational services is not to be construed by customers or anyone else as an adviser relationship. All information communicated is clearly for educational information purposes and no advice is given or implied. Every customer assumes sole responsibility for his or her investment decisions. We do not recommend a particular brokerage firm. The Company has no responsibility for any profit or loss that may occur and will incur, no liability for any losses that may occur, or any type of

damages including, without limitation, consequential, special, intangible, indirect, direct, or similar damages that may arise directly or indirectly to auto-trading or any educational product offered by company and/or its principals, agents, Coaches, contractors, employees, and affiliates, regardless if the loss or damages is a result of negligence of company and/or its principals, agents, contractors, employees, and affiliates. Any attempt to violate this agreement shall result in full legal action and collections for any amount lost to the violation of this agreement by the subscriber.

Our services do not constitute investment advice or recommendations. We do not provide guidance or instructions on trading or investments, nor do we accept such advice from you. Any statements made by our employees, Coaches or representatives should not be construed as investment advice, and we disclaim any responsibility for such statements. If any information or statement of the Company's employees, Coaches, staff, or representatives is interpreted as investment advice or recommendations, the provider explicitly disclaims that such information or statement is investment advice or recommendations and shall not be responsible for them. None of the services offered to the customer by the provider should be interpreted as investment services. The Company does not offer any advice, instructions, or information regarding how the customer should execute transactions using the services or in any other context, nor does it provide similar information about the investment tools being traded. Furthermore, the Company does not accept any such advice, instructions, or information from the customer.

12. Termination

12.1 Termination Request from the Customer:

If a customer wishes to terminate their account, they must write to us at contactus@holaprime.com within 14 days of registration, provided no trading activity has occurred. Once trading begins, fees become non-refundable, with no possibility of partial or full refunds.

Once the same is acknowledged, and accepted, the customer will lose all access to their trading accounts and web portal.

12.2 Termination due to Prohibited Trading:

If the Customer engages in prohibited trading activities, the Company reserves the right to immediately restrict access to all Services and terminate the Customer's account, without compensation. There would be no requirement for prior warning, and no refunds will be issued for any fees paid in such cases.

13. Service modifications

We reserve the right to modify or discontinue any product or service at our discretion without prior

notice. Changes may include alterations to product descriptions or pricing. We do not guarantee that our products or services will meet your expectations or be error-free.

14. Third-party payment processing

Payments processed through third-party services are subject to the terms and conditions of those services. It is your responsibility to review and accept these terms before making a payment.

15. Purchase details

You agree to provide accurate and complete information for any purchases made through our website. You are responsible for updating your account information to ensure that transactions are completed successfully.

16. External links and tools

Our website may include links to third-party sites or tools not controlled by us. We are not responsible for these third-party resources or their content. Use of any third-party tools is at your own risk and subject to the third party's terms.

17. Errors and omissions

Occasionally, our website or services may contain errors or inaccuracies. We reserve the right to correct any such errors or inaccuracies and update information as needed. If incorrect information affects a purchase, we may cancel or adjust the transaction.

18. Changes to the website

We may update the content on our website from time to time, but its content is not necessarily complete or up-to-date. Any of the material on the Site may be out of date at any given time, and we are under no obligation to update such material.

19. Security

While we will investigate significant security breaches, we are not liable for any unauthorized access to

your account. You are responsible for maintaining the confidentiality of your account credentials and reporting any unauthorized use immediately.

20. Trading rules and prohibited trading practices

Hola Prime Ltd. offers multiple trading plans and each plan and account type is subject to specific Trading Rules and Prohibited Trading Practices.

The applicable Trading Rules and Prohibited Trading Practices are published on the Company's website and form an integral part of these Terms & Conditions. The Trading Rules and Prohibited Trading Practices applicable depend on the selected product, account type, and challenge or Funded stage.

By accepting these Terms & Conditions at the time of registration and again, where applicable, upon issuance of an Hola Prime Account, the client confirms that they have reviewed and agree to comply with the Trading Rules and Prohibited Trading Practices applicable to their account.

Any breach of the applicable Trading Rules or Prohibited Trading Practices may result, at the Company's discretion, in account suspension or termination, disqualification, forfeiture of profits, denial or reversal of payouts, or other remedial action.

The Company may amend the trading rules and Prohibited Trading Practices from time to time. Such amendments take effect upon publication on the Company's website. Continued use of the services constitutes acceptance of the amended rules. In the event of any inconsistency, the applicable Trading Rules and Prohibited Trading Practices shall prevail.

The applicable trading rules and Prohibited Trading Practices are available at the following links:

- [Forex Trading Rules](#)
- [Futures Trading Rules](#)
- [Forex Challenge account Prohibited Trading Practices](#)
- [Forex Direct account Prohibited Trading Practices](#)
- [Futures Challenge and Direct accounts Prohibited Trading Practices](#)

21. Liability limitation

The company does not guarantee, represent, or warrant that the customer's use of the service will be

free from errors, timely, secure, or uninterrupted. The company does not assure that the results obtained from using the service will be accurate or dependable. The customer acknowledges that the company may suspend the service for indefinite periods or cancel it at any time, with or without prior notice. The customer expressly agrees that their use of, or inability to use, the service is solely at their own risk.

The service, along with all products and services provided to the customer through the company's offerings, is made available 'as is' and 'as available', without any representations, warranties, or conditions of any kind, whether express or implied. This includes all implied warranties or conditions of merchantability, quality, fitness for a particular purpose, durability, title, and non-infringement.

Under no circumstances will the company, along with its directors, officers, employees, affiliates, agents, contractors, interns, suppliers, service providers, or licensors, be liable for any injury, loss, claim, or any direct, indirect, incidental, punitive, special, or consequential damages of any kind. This includes, but is not limited to, lost profits, lost revenue, lost savings, loss of data, replacement costs, or similar damages, regardless of whether the claim is based in contract, tort (including negligence), strict liability, or otherwise. This applies to any damages arising from the customer's use of the service or any products obtained through the service, or for any other claims related to the customer's use of the service or any product, including, but not limited to, errors or omissions in any content, or any loss or damage incurred as a result of using the service or any content (or product) posted, transmitted, or otherwise made available via the service, even if advised of the possibility of such damages.

Because some states or jurisdictions do not allow the exclusion or limitation of liability for consequential or incidental damages, in such states or jurisdictions, the company's liability will be limited to the fullest extent permitted by law.

22. Indemnification

The Customer agrees to indemnify, defend, and hold harmless The Provider, along with its parent company, subsidiaries, affiliates, partners, officers, directors, agents, contractors, licensors, service providers, subcontractors, suppliers, interns, and employees, from any claims or demands, including reasonable attorneys' fees, or other expenses that arise directly or indirectly out of or from (a) your breach of these Terms of Use or other terms applicable to your use of COMPANY products or services; (b) any allegation that any materials that you submit to us or transmit to us infringes or otherwise violates the copyright, trademark, trade secret, or other intellectual property or other rights of any third party; and/or (c) your activities in connection with any COMPANY products or services.

23. Non-disparagement & reputational risk

If any provision of these Terms is found to be invalid or unenforceable, the remaining provisions will remain in effect. The invalidity of one provision does not affect the validity of the other provisions.

23.1 The User irrevocably agrees, for the duration of these Terms and at all times thereafter, not to make any statement or engage in any conduct that may reasonably be regarded as disparaging, denigrating, or harmful to the reputation, goodwill, or business interests of Hola Prime. This restriction includes, without limitation, any oral or written statement made publicly, posted on social media platforms, shared online, or communicated to any third party, which could be construed as negative, misleading, defamatory, or otherwise damaging.

The parties acknowledge that this condition 23.1 is intended to operate consistently with the laws of Hong Kong, including the Defamation Ordinance (Cap. 21) and the common law principles of defamation, malicious falsehood, and injurious falsehood as applied by the courts of Hong Kong. Nothing in this clause limits Hola Prime's rights to seek legal remedies available under Hong Kong law for the publication of defamatory statements.

Without prejudice to any other rights or remedies, Hola Prime reserves the right to suspend or terminate the User's access to the Site and/or the Services where Hola Prime determines, in its sole and absolute discretion, that the User has breached this condition 23.1. The User irrevocably agrees that Hola Prime's determination of whether a breach has occurred shall be final and binding for the purposes of access revocation.

The parties acknowledge that this condition 23.1 is fundamental to protecting the integrity, reputation, and business interests of Hola Prime. Any breach shall entitle Hola Prime to pursue all available legal remedies, including (but not limited to) injunctive relief, damages, and any other equitable or statutory remedies available under Hong Kong law. This condition 23.1 shall survive termination or expiration of these Terms.

23.2 In the event that any dispute, claim, complaint, or legal action arises out of or relates to these Terms, and Hola Prime is required to engage in legal proceedings to enforce its rights, defend its reputation, or respond to allegations made by the User or any third party acting on the User's behalf, the User shall be liable for all legal costs, charges, and expenses reasonably incurred by Hola Prime. This includes, without limitation, solicitors' fees on a full indemnity basis, barristers' fees, court filing fees, disbursements, expert fees, and any other related professional costs, irrespective of the outcome of such proceedings.

The User acknowledges that this condition 23.2 is essential to protect Hola Prime's legitimate business interests and agrees to fully indemnify Hola Prime for all such costs. This indemnity shall survive termination or expiration of these Terms.

24. Severability

If any provision of these Terms is found to be invalid or unenforceable, the remaining provisions will remain in effect. The invalidity of one provision does not affect the validity of the other provisions.

25. Payment disputes

If disputing a payment negatively impacts our standing with payment processors, we may suspend or terminate your account. Accounts with disputed transactions may be refunded or barred from further use.

26. Agreement

Failure to enforce any provision of these Terms does not constitute a waiver of that provision. These Terms, along with any posted policies, represent the entire agreement between you and us regarding your use of the services.

27. Termination

27.1 Notice Period:

Either party may terminate this Agreement at any time in written notice to the other party.

27.2 Termination for Cause:

The Company may terminate this Agreement immediately for cause, including but not limited to:

- Breach of this Agreement by the Customer.
- Engagement in fraudulent, unethical, or illegal trading practices.
- Failure to comply with Company policies or applicable laws.

28. Force majeure

28.1 Hola Prime Limited shall not be liable to the Customer for any claims, losses, damages, costs, or expenses, including attorneys' fees, that are caused directly or indirectly by certain events or circumstances.

28.2 Such events may include, but are not limited to:

- Civil unrest
- War or insurrection
- International intervention
- Government actions (e.g., exchange controls, confiscations, nationalisations, devaluations)
- Natural disasters or acts of God
- Unfavorable market conditions
- Inability to communicate with relevant parties
- Delays, disruptions, failures, or malfunctions of any transmission or communication systems or computer facilities, whether these belong to:
 - Hola Prime Limited
 - The Customer
 - Trading platforms
 - Third-party service providers

In summary, Hola Prime Limited is not responsible for any losses or damages resulting from these extraordinary events or circumstances.

29. Arbitration, jurisdiction, choice of law, class action waiver and jury trial waiver

29.1 For Global Clients:

Any legal relations established by these Terms or related to them, as well as any related non-contractual legal relations, shall be governed by the laws of Hong Kong. Any dispute that may arise in connection with these Terms and/or related agreements will fall within the jurisdiction of the Hong Kong court having local jurisdiction according to the registered office of the Company.

For US Clients:

Any dispute, claim, or controversy arising out of or relating to this Agreement or the breach, termination, enforcement, interpretation, or validity thereof, including the determination of the scope or applicability of this Agreement to arbitrate, shall be determined by arbitration in Hong Kong, or New York before one arbitrator. The arbitration shall be administered by JAMS pursuant to its Comprehensive Arbitration Rules and Procedures and in accordance with the Expedited Procedures in those Rules. Judgment on the Award may be entered in any court having jurisdiction. The Parties shall

evenly share the cost of arbitration. This clause shall not preclude Parties from seeking provisional remedies in aid of arbitration from a court of appropriate jurisdiction. In the event of litigation or arbitration concerning the subject matter of this Agreement, the prevailing Party shall be entitled to recover all costs incurred by it, including such Party's reasonable attorneys' fees. The Parties agree that:

29.1.1 no arbitration proceeding hereunder whether a consumer dispute or a business dispute shall be certified as a class action or proceed as a class action, or on a basis involving claims brought in a purported representative capacity on behalf of the general public, other customers, or potential customers, or persons similarly situated, and

29.1.2 no arbitration proceeding hereunder shall be consolidated with, or joined in any way with, any other arbitration proceeding. The parties agree to arbitrate a consumer dispute or business dispute on an individual basis and each waives the right to participate in a class action

29.2 This Agreement and any breach or purported breach thereof shall be construed and interpreted in accordance with the laws of Hong Kong without regard for its conflict of law's provisions.

29.3 The parties waive any right to assert any claims against the other party as a representative or member in any class or representative action, except where such waiver is prohibited by law or deemed by a court of law to be against public policy. To the extent either party is permitted by law or court of law to proceed with a class or representative action against the other, the parties agree that:

(i) the prevailing party shall not be entitled to recover attorneys' fees or costs associated with pursuing the class or representative action (notwithstanding any other provision in this agreement); and

(ii) the party who initiates or participates as a member of the class will not submit a claim or otherwise participate in any recovery secured through the class or representative action.

29.4 each party hereto hereby waives, to the fullest extent permitted by applicable law, any right it may have to a trial by jury in any legal proceeding directly or indirectly arising out of or relating to this agreement or the transactions contemplated hereby (whether based on contract, tort or any other theory). Each party hereto (a) certifies that no representative, agent, or attorney of any other party has represented, expressly or otherwise, that such other party would not, in the event of litigation, seek to enforce the foregoing waiver and (b) acknowledges that it and the other parties hereto have been induced to enter into this agreement by, among other things, the mutual waivers and certifications in this section. This paragraph shall not apply to those parties located in either California or Georgia.

30. Legal compliance

By using the Website, you acknowledge and agree that:

30.1 You possess the necessary authority to accept these Terms of Service;

30.2 Your use of the Website will strictly adhere to the allowed activities outlined in these Terms of Service;

30.3 You will not infringe upon or misuse any User's or third party's confidentiality or intellectual property rights;

30.4 You will ensure compliance with all applicable local, provincial, and federal laws, as well as any policies published on the Website.

30.5 Your use of the Website should be exclusively for lawful purposes, following the guidelines set out in these Terms of Service and any notices or conditions provided on the Website.

30.6 If you use the Website on behalf of others or to offer services to others, you must ensure you have the proper authorization and that all individuals or entities served follow and agree to these Terms of Service.

31. Modifications to these terms of service

We may update and revise these Terms of Service periodically. We retain the right to modify these Terms of Service at any time, with any changes becoming effective as soon as they are posted on the Website. We will attempt to notify you of significant changes at our discretion, either through email or via notifications on the Website. Continued use of the Website following any changes will be considered as your immediate and unconditional acceptance of the revised Terms of Service, regardless of whether or not we have identified the changes as significant.

32. Contact us

For any questions or concerns, please contact us at contactus@holaprime.com or visit www.holaprime.com.

Signature Details:

Contract ID: 3a40455e-f029-42ea-8519-7e169cb22b69;

Contractor: Trang Đình Hà kiều;

Email: dinhkieutrang2805@gmail.com;

Time(UTC): 05/12/2026 04:53:08;

IP Address: 1.54.120.219, 172.70.189.58;

KYC Provider: Sumsu; ID:6a02aad42620ec233e9b552;

Authentication

User Login Identity:

Two factor authentication: Enabled

Entered Security Code: SC77ejxcy4;

Headers: Accept: application/json, text/plain, */*

Connection: keep-alive

Host: fdluserapiprod.fpfxtech.io

User-Agent: Mozilla/5.0 (Windows NT 10.0; Win64; x64) AppleWebKit/537.36 (KHTML, like Gecko) Chrome/147.0.0.0 Safari/537.36

Accept-Encoding: gzip, br

Accept-Language: en-US

Authorization: Bearer

eyJhbGciOiJIUzI1NiIsInR5cCI6IkpXVCJ9.eyJJdDdXN0b21lcil6IjEwODUwMSIsIlVzZXJuYW1lIjoieVhJhbmdmfQzEyMDU0MyIsIkZpcnN0TmFtZSI6IlRyYW5nIiwiTGZzdE5hbWUiOiLEkGluaCBIw6Aga2nhu4F1IiwiQ291bnRyeSI6IlZ0liwiU3RhdGUiOiIiLCJjbXB1cnNvbmlF0ZWQiOiJmYWxzZSI6IlNlY3VyaXR5U3RhbXAiOiIyYTBkYWFKOC0yNzE4LTRjMmUtOGJlNi00M2U2OWFlbnJfIiNDgiLCJjc0FyY2hpdmlVkljoiMCIsIkF1dGhMZlZlbnCI6IklZ1bGwiLCJodHRwOi8vc2NoZW1hcy54bWxzb2FwLm9yZy93cy8yMDA1LzA1L2lkZW50aXR5L2NsYWltcy9uYW1laWRlbnRpZmllciI6IjEwODUwMSIsImp0aSI6IjI4NjI5YmlyLWQwZTQtNDU3OC05MjIxLWE0MDU4NDNmMzg5YyIsIkF1dGhUeXB1IjoieR29vZ2xlIiwiU2tpcEluaXRhbDJGQSI6InRydWUiLCJlU29GYWN0b3JFbmFibGVkIjoieZmFsc2UiLCJleHAiOiJlE3Nzg2NDc0MTYsImZlcyI6Imh0dHBzOi8vYXBpLmZwZnguY29tIiwiYXVkljoiaHR0cHM6Ly9hcGkuZnBmeC5jb20ifQ.liZ3VAivwtrSc6E97lWH92osGYH5Wt0LXx5vB7uU5DM

Content-Type: application/json

Origin: <https://trader.holaprime.com>

Referer: https://trader.holaprime.com/

Content-Length: 887

x-forwarded-for: 1.54.120.219, 172.70.189.58

sec-fetch-mode: cors

sec-fetch-dest: empty

priority: $u=1$, i

cf-ray: 9fa6d1696a906bdf-SIN

x-client-path: /en/agreement

```
sec-ch-ua-platform: "Windows"
```

sec-ch-ua: "Google Chrome";v="147", "Not.A/Brand";v="8", "Chromium";v="147"

sec-ch-ua-mobile: ?0

sec-fetch-site: cross-site

```
cdn-loop: cloudflare; loops=1
```

CF-Connecting-IP: 1.54.120.219

CF-IPCcountry: VN

CF-Visitor: {"scheme":"https"}

X-Forwarded-Proto: https

X-Forwarded-Host: fdluserapiprod.fpfxttech.io

X-Forwarded-Server: fdluserapiprod.fpfxttech.io

;